

Voluntary Report – Voluntary - Public Distribution

Date: May 28,2020

Report Number: TH2020-0076

Report Name: New Commentary Period on Draft Notification of a Zero MRL for Residues of Paraquat and Chlorpyrifos

Country: Thailand

Post: Bangkok

Report Category: Oilseeds and Products, Grain and Feed, Sanitary/Phytosanitary/Food Safety, FAIRS Export Certificate Report, FAIRS Subject Report, Food and Agricultural Import Regulations and Standards - Certification, Food and Agricultural Import Regulations and Standards - Narrative

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Report Highlights:

The Thai Food and Drug Administration (TFDA) extended the public comment period on the Ministry of Public Health (MOPH)'s draft Notification Re: Food Containing Pesticide Residues (Pesticide Residues in Food) (No. 3) from June 15, 2020 to July 18, 2020. According to sources, international entities can submit comments to the TFDA.

TFDA extended the commentary period for the draft notification Re: Food Containing Pesticide Residues (Pesticide Residues in Food) (No. 3) (Attachment 1) until July 18, 2020. TFDA posted its draft notification on its website (<http://www.fda.moph.go.th/sites/food/SitePages/View.aspx?T=FoodNews&TF=1&IDdata=142>), available only a Thai version).

This new commentary period also applies to Thailand's notification G/SPS/N/THA/313 to the WTO.

Thai residents, Thai companies, WTO country/economy members, and international entities can submit comments to the TFDA via the contact information below using the attached form (Attachment 2).

Food Standard and Regulation Division, Bureau of Food, Food and Drug Administration, Ministry of Public Health, Tivanon Road, Muang District, Nonthaburi 11000 OR;

Fax: 02-591-8476, 02-591-8460 OR;

e-mail: p2food@fda.moph.go.th

Attachment 1

(Unofficial Translation)

Ministry of Public Health Notification

No. _____ B.E. _____

By virtue of the Food Act B.E. 2522 (1979)

Re: Food Containing Pesticide Residues (No. 7)

It is deemed appropriate to revise the Ministry of Public Health notification entitled “Food Containing Pesticide Residues”.

By virtue of the provision of Section 5 in the first phase, and Section 6 (2) (3) and (9) of the Food Act B.E. 2522 (1979), the Minister of Public Health issues the notification as follows:

Clause 1 Add items number 83 to 87 into a list in Annex 1: Hazardous S Substance Type 4 under the Hazardous Act B.E. 2535 (1992) and the Hazardous Act (Amended), B.E. 2551 (2008) in Attachment of Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues, as follows:

83	chlorpyrifos
84	chlorpyrifos-methyl
85	paraquat
86	paraquat dicloride
87	Paraquat methosulfate

Clause 2 Abolish item number 1 chlorpyrifos and item number 23 in Annex 2: Maximum Residue Limit is Attachment of Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues, dated August 18, B.E. 2560 (2017);

Clause 3 All manufacturers and importers of food products for commercial purpose must comply the following requirements:

- (1) Any food products manufactured prior to June 1, 2020 must meet the requirement as described in Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues dated August 18, 2017; and comply to this notification within 30 days after the notification is effective.
- (2) Any food products being exported from country of origin prior to June 1, 2020 must meet the requirement as described in Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues dated August 18, 2017; and comply to this notification within 30 days after the notification is effective.

Clause 4 This notification is effective on a day after the date of publishing in the Royal Gazette.

Notified on _____

Comment Submission Form

(Draft) Ministry of Public Health (MOPH) Notification (no.) B.E.

By virtue of the Food Act B.E. 2522 (1979) Re: Food Containing Pesticide Residues (No. 3)

Personal Details:

Name and Last name

.....Title.....

Organization/Address.....

.....

Tel. Fax E-mail

Additional info

☐ Public Sector

☐ Producer/ Instant Food Importer

☐ Agricultural Commodity Importer (food-grade)

☐ Other.....

Please answer the question by marking in ☐ and fill in opinion in blank space.

1. Add two chemical substances; chlorpyrifos and paraquat in total of 5 items from no. 83 to 87 into Annex 1 of MOPH Notification no. 387 B.E. 2566 Re: Food Containing Pesticide Residues

☐ Agree

☐ Partially disagree

because.....

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☐ Disagree

because.....

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2. Revoke Maximum Residue Limit, MRL of agricultural chemical which are 1) chlorpyrifos and 23) paraquat listed in annex 2 of MOPH Ministerial Notification no. 387 B.E. 2560 Re: Food Containing Pesticide Residues

(Due to recategorization from agricultural chemical no. 3 to no.4 according to Annex 1 of MOPH Notification, by which zero tolerance of MRL in food will be applied)

- ☐ Agree
- ☐ Partially disagree

because.....
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- ☐ Disagree

because.....
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3. Grace Period as specified in the Draft

- ☐ Agree
- ☐ Partially disagree because

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- ☐ Disagree

because.....
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4. Effective Date (1 day after published date in Royal Gazette)

- ☐ Agree
- ☐ Partially disagree

because.....
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- ☐ Disagree

because.....
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5. Comment/other recommendation

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Signature.....

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Please send your filled-in questionnaire to:

- ☐ **Food Standard and Regulation Division, Bureau of Food, Food and Drug Administration, Ministry of Public Health, Tivanon Road, Muang District, Nonthaburi 11000 OR;**
- ☐ **Fax: 02-591-8476,02-591-8460**

♣♣♣ By July 18, 2020 ♣♣♣

For more Inquiry: Food Standard and Regulation Division, Bureau of Food Tel. 02-590-7179 Fax: 02-591-8476 e-mail : p2food@fda.moph.go.th

Attachments:

No Attachments.